

2010 WL 1678176

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United States District Court,

C.D. California

Sylve v. Kane

United States District Court, C.D. California. March 24, 2010 | Not Reported in F.Supp.2d | 2010 WL 1678176 (Approx. 22 pages)

Jerry L. SYLVE, Petitioner,

v.

A.P. KANE, Warden, Respondent.

No. CV 06-1786-R (CW).

March 24, 2010.

Change View

1 Burglary

Evidence was sufficient to support **defendant's** conviction for first degree burglary under California law. **Defendant** entered victim's apartment as she and her children slept and after being confronted by victim, **defendant** began rummaging through her kitchen drawers. **Defendant**, a homeless man who witness identified as having used victim's apartment to sleep when it was vacant, only fled after victim ran to a **neighbor's** door for assistance. From these facts, jury at **defendant's** trial was entitled to infer that **defendant** entered the dwelling unlawfully. Furthermore, **defendant's** quick exit from the building when victim summoned her **neighbors** provided sufficient evidence that **defendant** had the specific intent to commit theft inside victim's apartment.



67	Burglary
67II	Prosecution
67k40	Weight and Sufficiency of Evidence
67k41	In General
67k41(3)	Intent
67	Burglary
67II	Prosecution
67k40	Weight and Sufficiency of Evidence
67k41	In General
67k41(4)	Breaking and Entry

Attorneys and Law Firms

SELECTED TOPICS

Habeas Corpus

Jurisdiction, Proceedings, and Relief
Dismissal of Habeas Petition

Secondary Sources

Parole.
6 Witkin, Cal. Crim. Law 5th Crim W (2024)

...Habeas corpus is an appropriate n seeking declaratory and injunctive re parolee whose parole is threatened l arbitrary action. (In re Faucette (196 C.A.2d 338, 343, 61 C.R. 97, ...

Abuse of writ as basis for dismissal o prisoner's second or successive peti federal habeas corpus
60 A.L.R. Fed. 481 (Originally publis 1982)

...This annotation collects and analy cases in which the courts have discu decided whether, or under what circumstances, the filing by a state p of a second or successive federal ha

§ 14:3. Procedural Requirements I the Act
Sex Crimes: California Law and Prox 14:3

...Screening By the Department of Corrections and Rehabilitation (Welf Code, § 6601) Preliminary Screening Department of Corrections and Reha (CDCR) must review the **defendant'**

See More Secondary Sources

Briefs

BRIEF FOR RESPONDENT
1997 WL 583466
Richard F. Trest v. Burl Cain, Warden Supreme Court of the United States Sep. 19, 1997

...FN*Counsel of Record Petitioner F Franklin Trest, an inmate at Louisian Penitentiary, is before this Honorable on a writ of certiorari to the United S Court of Appeals for the F...

JOINT APPENDIX, VOL. II
2012 WL 6947830
Carlos Trevino, Petitioner, v. Rick Th Director, Texas Department of Crimir Justice, Correctional Institutions Divi Respondent.
Supreme Court of the United States Dec. 13, 2012

...FN* Admitted to practice in the Sta California. Supervision by members firm who are members of the District Columbia Bar. Now comes Robert Ti **defendant** in the above styled and n

BRIEF OF AMICUS CURIAE N DISTRICT ATTORNEYS ASSOCIATION BEHALF OF RESPONDENT
1996 WL 277109
Ellis Wayne Felker v. Tony Turpin, W Supreme Court of the United States May 17, 1996

Jerry L. Sylve, Jr., Slidell, LA, pro se.

REPORT AND RECOMMENDATION OF UNITED STATES MAGISTRATE JUDGE

[CARLA M. WOEHRLE](#), United States Magistrate Judge.

***1** This Report and Recommendation is submitted to the Honorable Manuel L. Real, United States District Judge, pursuant to [28 U.S.C. § 636](#) and General Order 194 of the United States District Court for the Central District of California. For reasons stated below, the petition for habeas corpus relief should be denied and this action dismissed with prejudice.

I. PROCEDURAL HISTORY

Petitioner, a prisoner in state custody, challenges a conviction in California Superior Court, Los Angeles County, Case Nos. NA050090-01 and NA052601.

On February 27, 2003, a jury found Petitioner guilty of first degree burglary, bribery of a witness, and solicitation of bribery. [Volume 4 Reporter's Transcript ("RT") 1803-09; Volume 2 Clerk's Transcript ("CT") 238-41, 294.] The trial court imposed a total state prison term commitment of seven years. [4 RT 2412-13; 2 CT 294.]

Petitioner appealed his conviction to the California Court of Appeal (Case No. B170757). On September 30, 2004, the California Court of Appeal issued an unpublished, reasoned opinion affirming Petitioner's conviction. [Lodgments 3-9.] Petitioner then filed a petition for review in the California Supreme Court (Case No. S129088). [Lodgment 10.] On December 15, 2004, the California Supreme Court denied the petition for review "without prejudice to any relief to which [Petitioner] might be entitled after [the] court determines in *People v. Black*, S126182, and *People v. Towne*, S125677, the effect of *Blakely v. Washington* (2004) [542 U.S. 296](#), [124 S.Ct. 2531](#), [159 L.Ed.2d 403](#), on California law." ¹ [Lodgment 11.]

On March 21, 2006, Petitioner filed a habeas petition in the California Supreme Court (Case No. S142085). [Lodgment 12.] On April 19, 2006, the state supreme court denied the petition without comment or citation to authority. [Lodgment 13.]

On March 23, 2006, Petitioner filed the instant Petition in this court, asserting twelve claims of error, in addition to corresponding claims of ineffective assistance of counsel, relating to pre-trial and trial proceedings in his case. On November 17, 2006, Respondent filed an Answer to the Petition ("Answer"). On July 16, 2007, Petitioner filed a Traverse to the Answer ("Traverse").

The court now finds the matter ready for decision without further briefing or argument. As discussed herein, the Petition should be denied and dismissed in its entirety.

II. FACTUAL BACKGROUND

In its September 30, 2004 opinion, the California Court of Appeal summarized the case against Petitioner, in pertinent part, as follows:

The victim (Rodriguez), her three children, and her boyfriend (Garcia) had just moved into an apartment. That night, while Garcia was at work, Rodriguez and the children went to sleep on the floor, the furniture not yet having been set up.

Rodriguez had locked all the doors and windows, save one window which could not be locked. During the night, Rodriguez awoke to the sound of an opening window and the rustling of blinds. She walked into the living room and encountered **defendant**, who was illuminated by a light from the kitchen. She told him to leave, saying the apartment had been rented. He just stood there. When she started to raise her voice, he put his finger to his lips. He then had her go into the bedroom and lie down, whereupon he stroked her bare legs with his hands and face.

***2** Rodriguez pinched one of her sleeping children, who awoke loudly. **Defendant** fled to the kitchen and began rummaging through the drawers. Rodriguez went out the front door and began knocking on the next door apartment. When **defendant** realized she was doing this, he uttered an epithet and ran away.

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Trial Court Documents

In re *Mc Daniel*.
2004 WL 5547402
In re Robert Dean MC DANIEL.
Superior Court of California
Mar. 17, 2004

...DATE & TIME: MARCH 19, 2004 [NO: 21 CLERK: C.C. KETTLER The for writ of habeas corpus has been fi considered by the Court. It is HEREI ORDERED that the petition is DENIE without ...

In re *Delander*
2005 WL 6648313
In re the Petition of: Steven William DELANDER, Jr., Petitioner.
Superior Court of California
Oct. 06, 2005

...HC 17725 - Fourth Petition THIS C HAVING READ AND CONSIDERED FOURTH PETITION FOR WRIT OF HABEAS CORPUS, AND THE FILE ABOVE CAPTIONED MATTER FINI law does not allow the filing of s...

People v. Galvan
2012 WL 13221086
The PEOPLE of the State of Californ Jesse Candelari GALVAN, **Defenda**
Superior Court of California
July 09, 2012

...**DEFENDANT** IS NOT PRESENT I COURT, AND NOT REPRESENTED COUNSEL PETITIONER FILED A PI FOR WRIT OF HABEAS CORPUS I CONNECTION WITH FELONY CAS NUMBER BA390560 WITH THE LO ANGELES SUPERIOR COUR...

[See More Trial Court Documents](#)

Garcia responded to Rodriguez' phone call and arrived at the apartment within a few minutes, soon followed by police, who took a report of the incident including a description of the culprit.

A couple of days later, Rodriguez was in front of the apartment building with Garcia and a **neighbor** when she saw **defendant** walk down the street and into a nearby apartment building. He was wearing the same shirt he had on during the encounter in Rodriguez' apartment. The **neighbor** had previously seen **defendant** (apparently homeless) going in and out of Rodriguez vacant apartment before she moved in (inferably to sleep).

Responding police went into the nearby apartment building and eventually located **defendant** in one of the occupied units taking a shower. When they brought him out, Rodriguez immediately identified him. She also smelled his shirt and said it was the same scent worn by **defendant** the night of the intrusion.

From jail **defendant** wrote letters to Rodriguez and Garcia.... Someone claiming to be **defendant** called Garcia and directed him to tell Rodriguez to drop the charges. The caller also directed Garcia to be in court when Rodriguez testified and to relay instructions to her via head nods from the caller.

Defendant did not testify. He presented a defense investigator who attempted to impeach Rodriguez' identification of **defendant**.

[Lodgment 9 at 2-3.]

III. PETITIONER'S CLAIMS

Petitioner states the following claims for federal habeas relief:

1. The trial court committed misconduct by allowing the prosecutor access to the defense case file. [Petition at 7-14.]
2. The prosecutor and police committed misconduct by intercepting and stealing privileged information. [Petition at 15-30.]
3. The prosecutor and police committed misconduct by dissuading the prosecution's witness from giving testimony favorable to Petitioner, soliciting perjury, and engaging in improper argument. [Petition at 31-70.]
4. Petitioner **received** ineffective assistance of trial counsel with respect to the allegations made in ground three, as well as for counsel's failure to impeach the prosecution's witness and to object to the prosecution's leading questions. [Petition at 31, 35-36, 61-70.]
5. The prosecutor planted drugs in the evidence presented at Petitioner's trial. [Petition at 71, 72-74, 95-97.]
6. The prosecutor suppressed and destroyed all exculpatory evidence. [Petition at 71, 74-86, 92-94, 98-107.]
7. The prosecution used highly suggestive identification procedures that tainted all the identification evidence. [Petition at 71, 86-91, 108-19.]
8. The trial court erroneously denied the defense the right to subpoena witnesses. [Petition at 120-28, 132-43.]
- *3 9. The trial court engaged in misconduct by denying the defense the opportunity to cross-examine witnesses regarding subjects addressed on direct examination. [Petition at 120, 128-31, 144-49.]
10. The prosecutor misrepresented the evidence and failed to give the defense adequate notice of the criminal act that would be relied upon to support the burglary charge. [Petition at 150-53, 167-73.]

- 10a. Petitioner **received** ineffective assistance of trial counsel due to defense counsel's mishandling of the errors alleged in grounds 1-10. [Petition at 7, 15, 31, 71, 120, 150.]
11. The prosecution presented insufficient evidence to support Petitioner's conviction. [Petition at 150, 154-58, 174-89.]
12. The trial court erroneously revoked Petitioner's self-representation status before his preliminary hearing and improperly denied his request for self-representation made on the day of trial. [Petition at 150, 158-66, 190-201.]

IV. STANDARD OF REVIEW

Review of the petition in this case is governed by provisions of the Antiterrorism and Effective Death Penalty Act of 1996 ("AEDPA"). Under AEDPA, a federal court may not grant habeas relief on a claim adjudicated on its merits in state court unless that adjudication "resulted in a decision that was contrary to, or involved an unreasonable application of, clearly established Federal law, as determined by the Supreme Court of the United States," or "resulted in a decision that was based on an unreasonable determination of the facts in light of the evidence presented in the State court proceeding." [28 U.S.C. § 2254\(d\)](#).

"Clearly established Federal law" means "the governing legal principle or principles set forth by the Supreme Court at the **time** the state court renders its decision." [Lockyer v. Andrade](#), 538 U.S. 63, 71-72, 123 S.Ct. 1166, 155 L.Ed.2d 144 (2003). "Habeas relief is unavailable if the Supreme Court has not 'broken sufficient legal ground' on a constitutional principle advanced by a petitioner, even if lower federal courts have decided the issue." [Pinholster v. Ayers](#), 590 F.3d 651, 662 (9th Cir.2009) (en banc) (quoting [Williams v. Taylor](#), 529 U.S. 362, 381, 120 S.Ct. 1495, 146 L.Ed.2d 389 (2000)). Although "only Supreme Court authority is binding, circuit court precedent may be 'persuasive' in determining what law is clearly established and whether a state court applied that law unreasonably." [Pinholster](#), 590 F.3d at 662 (citing [Clark v. Murphy](#), 331 F.3d 1062, 1069 (9th Cir.2003)).

A state court decision is "contrary to" clearly established Supreme Court law if it " 'applies a rule that contradicts the governing law set forth in [Supreme Court] cases' " or if it reaches a result different from Supreme Court precedent on "materially indistinguishable" facts. [Price v. Vincent](#), 538 U.S. 634, 640, 123 S.Ct. 1848, 155 L.Ed.2d 877 (2003) (quoting [Williams](#), 529 U.S. at 405-06); see also [Frantz v. Hazey](#), 533 F.3d 724, 734 (9th Cir.2008) (en banc) (state court decision using "the wrong legal rule or framework" constitutes error under "contrary to" prong of [§ 2254\(d\)\(1\)](#)).

*4 A decision involves an "unreasonable application" of Supreme Court law " 'if the state court identifies the correct governing legal principle from [the Supreme Court's] decisions but unreasonably applies that principle to the facts of the prisoner's case.' " [Chia v. Cambra](#), 360 F.3d 997, 1002 (9th Cir.2004) (quoting [Andrade](#), 538 U.S. at 75). "To show that a state court's application of Supreme Court precedent was 'unreasonable,' the petitioner must establish that the state court's decision was not merely incorrect or erroneous, but 'objectively unreasonable.' " [Pinholster](#), 590 F.3d at 662 (citing [Williams](#), 529 U.S. at 409-10); see also [Taylor v. Maddox](#), 366 F.3d 992, 999 (9th Cir.2004) ("objectively unreasonable" standard also applies to state court factual determinations).

The phrase "adjudicated on the merits" means that the state court's "grant or denial rest[ed] on substantive, rather than procedural, grounds." [Pinholster](#), 590 F.3d at 662 (citing [Lambert v. Blodgett](#), 393 F.3d 943, 966 (9th Cir.2004)).² In reviewing a state court adjudication, a federal habeas court looks to the last reasoned state decision on a claim as the basis for the state court's final judgment on that claim. [Pinholster](#), 590 F.3d at 662. When there is no state court decision articulating a rationale for judgment on the merits of a claim, a federal habeas court independently reviews the record to determine whether the state court's decision was contrary to, or an unreasonable application of, controlling law. [Pinholster](#), 590 F.3d at 663 and n. 4; [Delgado v. Lewis](#), 223 F.3d 976, 981-82 (9th Cir.2000). "Such '[i]ndependent review of the record is not de novo review of the constitutional issue, but rather, the only method by which we can determine whether a

silent state court decision is objectively unreasonable.' " *Pinholster*, 590 F.3d at 663 (quoting *Himes v. Thompson*, 336 F.3d 848, 853 (9th Cir.2003)).

V. DISCUSSION

A. CLAIMS ONE AND NINE-JUDICIAL MISCONDUCT

In his first claim, Petitioner asserts that the trial court committed misconduct by allowing the prosecutor access to the defense case file. The heart of Petitioner's claim is that the trial court's conduct allowed the prosecutor to view a report of an interview of Rodriguez by a defense investigator. [Petition at 7-14.] In his ninth claim, Petitioner argues that the trial court engaged in misconduct by denying the defense the opportunity to cross-examine witnesses regarding issues that were addressed on direct examination. [Petition at 120, 128-31, 144-49.] Petitioner raised these claims in his habeas petition to the California Supreme Court. [Lodgment 12.] The California Supreme Court denied the petition summarily. [Lodgments 23, 28.] As there is no reasoned decision articulating the basis for the state court's adjudication of these claims, this court must independently review the record to determine whether federal habeas relief is warranted under the AEDPA standard. *Delgado*, 223 F.3d at 981-82. The record does not afford any basis for overturning the state court's rejection of Petitioner's judicial misconduct claims.³

1. Legal Standard:

*5 "A fair trial in a fair tribunal is a basic requirement of due process." *In re Murchison*, 349 U.S. 133, 136, 75 S.Ct. 623, 99 L.Ed. 942 (1955). In attempting to make out a claim of unconstitutional bias, a plaintiff must "overcome a presumption of honesty and integrity" on the part of decision-makers. *Withrow v. Larkin*, 421 U.S. 35, 47, 95 S.Ct. 1456, 43 L.Ed.2d 712 (1975). A petitioner may show judicial bias in one of two ways, by demonstrating the judge's actual bias or by showing that the judge had an incentive to be biased sufficiently strong to overcome the presumption of judicial integrity. See *Paradis v. Arave*, 20 F.3d 950, 958 (9th Cir.1994). "[J]udicial rulings alone almost never constitute a valid basis for a bias or partiality motion." *Liteky v. United States*, 510 U.S. 540, 555, 114 S.Ct. 1147, 127 L.Ed.2d 474 (1994). When a district court reviews a state court judge's behavior on habeas review, the question is "whether the state trial judge's behavior rendered the trial so fundamentally unfair as to violate federal due process under the United States Constitution." *Duckett v. Godinez*, 67 F.3d 734, 740 (9th Cir.1995).

2. Access to Defense File:

On November 26, 2001, Petitioner was granted the right to represent himself. Accordingly, the trial court ordered that all discovery be turned over to Petitioner "after it's been checked by the prosecutor for whatever needs to be vetoed out." [Lodged Document 16 at F-7.] The record is silent as to what material was provided to the prosecutor for review. Petitioner alleges, however, that the entire defense case file was turned over to the prosecutor. According to Petitioner, included in the defense file was a defense investigator's report of an interview with Rodriguez. [Petition at 7-14.]

California Penal Code section 1054.3 provides as follows:

(a) The **defendant** and his or her attorney shall disclose to the prosecuting attorney:

(1) The names and addresses of persons, other than the **defendant**, he or she intends to call as witnesses at trial, together with any relevant written or recorded statements of those persons, or reports of the statements of those persons

"Persons whom the defense intends to call as witnesses at trial, in the context of section 1054.3(a), include " 'all witnesses it reasonably anticipates it is likely to call....' " *In re Littlefield*, 5 Cal.4th 122, 130, 19 Cal.Rptr.2d 248, 851 P.2d 42 (1993) (quoting *Izazaga v. Superior Court*, 54 Cal.3d 356, 375, 285 Cal.Rptr. 231, 815 P.2d 304 (1991)). Crucially, under state law, a defense investigator's report of an interview with a prosecution witness is discoverable when the defense intends to call the defense investigator as a witness. *Hubbard v. Superior Court*, 66 Cal.App.4th 1163, 1165, 78 Cal.Rptr.2d 819 (1997).

Petitioner explicitly states that his defense strategy was to call the defense investigator in an attempt to discredit Rodriguez's testimony. [Petition at 19.] Accordingly, the report was

discoverable under state law. The trial court's disclosure of the report, in compliance with state law, is not in any way indicative of bias.

***6** To the extent that Petitioner argues that the attorney work product privilege protected the report from disclosure notwithstanding the state law requirement that it be discovered, the privilege was waived. An attorney's voluntary disclosure of a writing to a third party uninterested in maintaining the confidentiality of the writing waives the attorney work product privilege. [Regents of University of California v. Superior Court](#), 165 Cal.App.4th 672, 679, 81 Cal.Rptr.3d 186 (2008). Petitioner put the report at issue by cross-examining Rodriguez with respect to the statements she made to the defense investigator and by calling the investigator himself to testify to the details of his interview of Rodriguez and the report memorializing that interview. [3 RT 639; 4 RT 1225-30, 1275-77.] By placing the investigator's report in issue, the defense waived any work product privilege that might have otherwise attached.

3. Limitation of Cross-Examination:

Petitioner also argues that the trial court engaged in misconduct by limiting Petitioner's cross-examination of Rodriguez and Garcia regarding a letter that Petitioner sent them, which became the basis for the bribery and solicitation of bribery charges against Petitioner. ⁴ [Petition at 120, 128-31, 144-49.]

On direct examination of Rodriguez and Garcia, the prosecutor questioned them about the letter. On cross-examination of Rodriguez, defense counsel attempted to ask her whether the letter told her "to come to court and tell the truth." The Court sustained its own objection to the question on hearsay grounds. [3 RT 642.] During cross-examination of Garcia, defense counsel asked the witness to read the letter sent by Petitioner and point out where in the letter Petitioner had threatened the witnesses. [3 RT 920.] The trial court ordered counsel to sidebar where it decided that the letter itself, which was being offered into evidence, was the best evidence of what was written and therefore ruled that counsel could not question the witness further on the subject. The trial court then instructed the jury as follows:

Ladies and gentlemen, you are going to get people's number 5 into evidence. The best evidence is the letter itself. You will have a chance to look at it. You will determine what content, what it is in the letter.

[3 RT 923.] Counsel then proceeded to question the witness as to whether the letter instructed him to "lie" or attempted to prevent the witness from coming to court. [3 RT 923.] The latter questioning was not objected to or otherwise barred by the trial court. [3 RT 925.]

As to the cross-examination of Rodriguez, the trial court's limitation of the questioning was minimal and was based on a finding that the questions were inadmissible under the rule against hearsay. This type of judicial ruling is not sufficient to prove judicial bias. [Liteky](#), 510 U.S. at 555. In addition, although not relied upon by the trial court in limiting the cross-examination of Rodriguez, as explained below, oral testimony of the content of the letter was inadmissible under state law.

***7** As to the cross-examination of Garcia, the trial court properly determined that oral testimony of the content of the letter was inadmissible. In California, the content of a writing may be proved by an otherwise admissible original, [Cal. Evid.Code § 1520](#), or acceptable secondary evidence, [Cal. Evid.Code § 1521](#). However, [California Evidence Code section 1523](#) provides that "oral testimony is not admissible to prove the content of a writing," except under certain circumstances where the original or a copy of the writing is unavailable. See also [Cal. Evid.Code § 1521\(b\)](#) ("Nothing in this section makes admissible oral testimony to prove the content of a writing if the testimony is inadmissible under [Section 1523](#)"). Accordingly, the original letter was the best evidence as to its content and the testimony of Garcia on that issue was properly excluded. Ultimately, the trial court's proper limitation of cross-examination based on state rules of evidence is not indicative of judicial bias.

B. CLAIMS TWO, THREE, FIVE, SIX, SEVEN, AND TEN-PROSECUTORIAL MISCONDUCT

In his second claim, Petitioner asserts that the prosecutor and police committed misconduct by intercepting and stealing the defense investigator's report. [Petition at 15-30.] In his third claim, Petitioner claims that the prosecutor and police committed misconduct by dissuading Rodriguez from giving testimony favorable to Petitioner, soliciting perjury, and engaging in improper argument .⁵ He also claims the prosecutor committed misconduct by transferring the case to another deputy district attorney after Petitioner sent her a letter identifying her alleged acts of misconduct. [Petition at 31-70.] In claim five, Petitioner alleges that the prosecutor planted drugs in the evidence that was presented at trial. [Petition at 71, 72-74, 95-97.] In claim six, Petitioner claims that the prosecutor suppressed and destroyed all exculpatory evidence. [Petition at 71, 74-86, 92-94, 98-107.] In claim seven, Petitioner claims that the prosecutor used improperly suggestive identification procedures resulting in tainted identification evidence. [Petition at 71, 86-91, 108-19.] Finally, in claim ten, Petitioner argues that the prosecutor misrepresented the evidence and failed to give the defense adequate notice of its theory of burglary. [Petition at 150-53, 167-73.] Petitioner raised his claims in his habeas petition to the California Supreme Court. [Lodgment 12.] The California Supreme Court denied the petition summarily. [Lodgments 23, 28.] As there is no reasoned decision articulating the basis for the state court's adjudication of this claim, this court must independently review the record to determine whether federal habeas relief is warranted under the AEDPA standard. [Delgado](#), 223 F.3d at 981-82. As explained below, the record does not afford any basis for overturning the state court's rejection of Petitioner's claims.⁶

1. Legal Standard:

^{*8} Prosecutorial misconduct rises to the level of a constitutional violation only where it "so infected the trial with unfairness as to make the resulting conviction a denial of due process." [Darden v. Wainwright](#), 477 U.S. 168, 181, 106 S.Ct. 2464, 2471, 91 L.Ed.2d 144 (1986) (quoting [Donnelly v. DeChristoforo](#), 416 U.S. 637, 643, 94 S.Ct. 1868, 1871, 40 L.Ed.2d 431 (1974); [Comer v. Schriro](#), 480 F.3d 960, 988 (9th Cir.), cert. denied, 550 U.S. 966, 127 S.Ct. 2455, 167 L.Ed.2d 1147 (2007); [Drayden v. White](#), 232 F.3d 704, 713 (9th Cir.2000)).

2. Stealing Evidence:

Based on the prosecutor's viewing of the defense file, and specifically the investigator's report, Petitioner claims that the prosecutor stole evidence. [Petition at 15-30.]

As discussed in detail in Section A.2. above, it was not error for the prosecutor to discover the defense investigator's report. It would defy logic for a prosecutor to "steal" evidence that he was legally entitled to discover. Furthermore, as explained, the disclosure did not infect Petitioner's trial with any unfairness, let alone unfairness so grave as to render his trial fundamentally unfair. Thus, even assuming, although certainly not deciding, that the prosecutor obtained the report through some nefarious means it did not result in a denial of due process.

3. Dissuading a Witness and Soliciting Perjury:

In his next claim of prosecutorial misconduct, Petitioner alleges that after improperly intercepting the defense investigator's report the prosecutor and police dissuaded Rodriguez from offering testimony favorable to Petitioner and solicited her perjured testimony. [Petition at 31-70.]

"[A] conviction obtained by the [prosecutor's] knowing use of perjured testimony is fundamentally unfair, and must be set aside if there is any reasonable likelihood that the false testimony could have affected the judgment of the jury." [U.S. v. Agurs](#), 427 U.S. 97, 103, 96 S.Ct. 2392, 49 L.Ed.2d 342 (1976) (footnotes omitted); [Hayes v. Brown](#), 399 F.3d 972, 978 (9th Cir.2005) (en banc). "To prevail on a claim based on [the prosecutor's knowing use of false evidence], the petitioner must show that (1) the testimony (or evidence) was actually false, (2) the prosecution knew or should have known that the testimony was actually false, and (3) that the false testimony was material." [United States](#)

v. Zuno-Arce, 339 F.3d 886, 889 (9th Cir.2003); *Napue v. Illinois*, 360 U.S. 264, 269, 79 S.Ct. 1173, 1177, 3 L.Ed.2d 1217 (1959).

Other than pointing to alleged inconsistencies in Rodriguez's testimony, Petitioner offers no evidence, other than his own bald accusations, that the inconsistencies were a result of improper influence by the prosecutor. To the extent that Petitioner relies on the fact that the prosecutor asked the detective to re-interview Rodriguez before the preliminary hearing, he still has not provided any proof that the prosecution team improperly influenced the witness. It is incumbent upon the prosecutor to thoroughly investigate the case against a criminal **defendant**. The simple fact that a police detective interviews and re-interviews a victim, no matter how many **times**, is not evidence in itself that perjury has been solicited.

***9** Ultimately, Rodriguez's testimony was consistent in all material respects. She was positive in her identification of Petitioner and did not waiver. [1 CT 83, 93-94, 106-10, 113-14, 115, 117; 3 RT 319, 330.] Her testimony was generally consistent with statements she made to the police after the incident but before the prosecutor allegedly intercepted the investigator's report. [1 CT 107; 3 RT 931-32, 938-43, 960.] In addition, her testimony at trial was materially consistent with her testimony at the preliminary hearing. [1 CT 83, 93-94, 106-19; 3 RT 319, 321-30.] On this record, Petitioner cannot show that the prosecution team improperly influenced Rodriguez's testimony.

4. Transfer of Case:

Petitioner also reads improper intent into the prosecutor's transfer of Petitioner's case before the preliminary hearing. [Petition at 33.] Petitioner claims that the prosecutor transferred the case after Petitioner sent a letter to the original prosecutor "[a]t the end of April 2002" detailing her alleged acts of misconduct. [Petition at 33.] However, the case was transferred on or before the preliminary hearing on April 3, 2002. [1 CT 80.] Accordingly, the transfer could not have resulted from Petitioner's letter.

5. Planting Drugs in Evidence:

Next, Petitioner alleges that the prosecutor planted drugs in evidence that was admitted at trial. [Petition at 71, 72-74, 95-97.]

Petitioner's claim is based on an incident that occurred during the testimony of Long Beach Police Officer Donald Collier. Officer Collier testified that he retrieved clothing belonging to Petitioner from the apartment where Petitioner was arrested and subsequently booked the clothing into evidence. [3 RT 964-67, 970-71.] Officer Collier was then asked to identify articles of clothing as being the evidence he seized in this case. [3 RT 971-76.] As Officer Collier examined a pair of jeans, he discovered "something" in the pocket "that [he] did not discover before." [3 RT 976.] The prosecutor asked that the item be placed back into the pocket and then asked Officer Collier if those were the jeans that he had seized and if the item he had located in the pocket impaired the integrity of the pants. [3 RT 976-77.] Shortly thereafter the trial court took a recess.

Out of the presence of the jury the trial court ordered that the "item" be removed from the pants and placed into evidence. Officer Collier removed the item and described it as "a plastic bag with a number of large off-white rocks." [3 RT 978.] Later, the prosecutor stated for the record that he did not believe the jury had seen the item that was recovered from the pants' pocket because he had "stepped in, besides the officer taking steps to not make it visible to the jury, [and] standing very close to him and hovering over it so that I do not believe that any juror saw that item." [3 RT 979.] Defense counsel agreed, stating that, "I don't think that [the jury saw it] because I think the officer was carefully shielding it with his palm. When I looked up, I just saw the tips of the plastic." [3 RT 980.]

***10** The trial court offered to question the jury about the incident but Petitioner stated, "Don't worry about it." [3 RT 980.] After conferring with Petitioner, counsel stated that "on the advice of [her] client" she did not wish the jury to be questioned regarding the incident. [3 RT 980.]

Again, Petitioner presents no evidence of wrong-doing by the prosecutor. In fact, the record indicates the prosecutor went out of his way to shield the newly discovered item from the jury's view. Both the prosecutor and defense counsel agreed that the jury could not see the

item. There is no reason to believe that the prosecutor would intentionally plant evidence and then ensure that it remained out of the jury's view. Regardless, the fact that the jury remained unaware of the newly discovered evidence negates any potential prejudice.

6. Suppressing and Destroying Exculpatory Evidence:

Next, Petitioner argues that the prosecutor suppressed and destroyed handwritten notes by police officers, police reports, and a tape recording of dispatch transmissions. [Petition at 71, 74-86, 92-94, 98-107.]

The trial court and both parties exhaustively litigated discovery issues in this case, even before the preliminary hearing. The prosecutor insisted that she had turned over all the police reports that had been generated during the investigation. [Lodgment 16 at H-28-H-30, H-37, H-38, H-40, H-51-H-52, H-60, H-62-H-68.] In addition, the police detective in charge of the investigation ensured the court that there were no handwritten notes by police officers in this case other than those that were provided to Petitioner. [Lodgment 16 at H-27-H-28, H-35-H-37, H-39, H-60-H-61.] Finally, the prosecutor explained that there were no tape-recorded dispatch transmissions and that those transmissions existed only in computerized format that was purged after 30 to 45 days. In Petitioner's case, because there was no request for a printout of the computerized dispatch transmissions within 30 to 45 days, they were purged according to police policy. [Lodgment 20 at 6.]

The prosecution's willful or inadvertent suppression of evidence favorable to the accused violates due process when the evidence is material to guilt or punishment. *Strickler v. Greene*, 527 U.S. 263, 280, 119 S.Ct. 1936, 1948, 144 L.Ed.2d 286 (1999); *Brady v. Maryland*, 373 U.S. 83, 87, 83 S.Ct. 1194, 1196-97, 10 L.Ed.2d 215 (1963). Evidence is material "if there is a reasonable probability that, had the evidence been disclosed to the defense, the result of the proceeding would have been different." *United States v. Bagley*, 473 U.S. 667, 682, 105 S.Ct. 3375, 3383, 87 L.Ed.2d 481 (1985); *Strickler*, 527 U.S. at 280, 119 S.Ct. at 1948. The Court must assess whether withheld evidence is material "in the context of the entire record." *Agurs*, 427 U.S. at 112; *Benn v. Lambert*, 283 F.3d 1040, 1053 (9th Cir.2002).

Petitioner cannot show that the prosecutor either willfully or inadvertently withheld any evidence from Petitioner. The record reflects that he got all police reports and handwritten notes. The record also reflects that the dispatch transmissions were purged according to policy before Petitioner requested them. Significantly, Petitioner has not produced any evidence that was available to the prosecutor but that was withheld from Petitioner at the **time** of trial, nor has he made any specific allegations of the existence of such evidence. Finally, as to the purged information, Petitioner has not made any showing that the information was material to his defense.

7. Suggestive Identification Procedures:

***11** Petitioner claims that an in-field identification and an in-custody lineup identification of Petitioner by Rodriguez were the result of improperly suggestive procedures employed by the prosecutor. [Petition at 71, 86-91, 108-19.]

a. Background:

After the crime, Rodriguez described the perpetrator to police as a black male, approximately five feet eight inches tall, with shaved hair and a muscular build. Rodriguez also described the suspect as wearing a blue Hawaiian print shirt. [3 RT 960.]

After police located Petitioner on the day of his arrest, they conducted an in-field show-up with Rodriguez. [3 RT 951.] Rodriguez was placed in the back seat of a patrol car and admonished that they had detained an individual but that it may or may not be the perpetrator and that she should not be influenced by the fact that the individual would appear in handcuffs. The car's headlights and spotlights were illuminated. Petitioner was then escorted in handcuffs into the middle of the street with police officers on either side of him. Rodriguez immediately identified Petitioner as her assailant, but then asked to smell his shirt because she would recognize his cologne. Officers took Petitioner's shirt and gave it to Rodriguez; Rodriguez positively identified the cologne on Petitioner's shirt. [3 RT 938-42, 951-54.]

Before trial, Petitioner's counsel moved for an in-custody lineup. The trial court ordered that a lineup be conducted involving Petitioner and five other individuals "of the same general appearance as **defendant** who is described as ... Male black, black hair, brown eyes, 5 feet 5 inches tall, 160 pounds, and 24 years old." [Lodgment 16 at E-1; Lodgment 22 at 1.] After Petitioner had been granted leave to proceed pro per, he complained to the trial court that the lineup procedures had been unduly suggestive because "[a]ll the other participants was far beyond the **defendant's** description and did not fit one criteria of the age, height, weight" [Lodgment 16 at H-5-H-6.] The prosecutor noted that before the identification took place, the lineup was viewed by the prosecutor, the detective on the case, and Petitioner's defense counsel, but no objections were made. [Lodgment 16 at H-6.]

b. Legal Standard:

Evidence derived from a suggestive pretrial identification procedure is inadmissible if the challenged procedure was so "impermissibly suggestive as to give rise to a very substantial likelihood of irreparable misidentification." *Simmons v. United States*, 390 U.S. 377, 384, 88 S.Ct. 967, 19 L.Ed.2d 1247 (1968); *Neil v. Biggers*, 409 U.S. 188, 198, 93 S.Ct. 375, 34 L.Ed.2d 401 (1972). Even if the identification procedure is suggestive, the court must consider "whether under the 'totality of the circumstances' the identification is reliable." *Biggers*, 409 U.S. at 199. The factors to be considered in evaluating the reliability of an identification after a suggestive procedure include: (1) the opportunity of the witness to view the criminal at the **time** of the crime; (2) the witness's degree of attention; (3) the accuracy of the witness's prior description of the criminal; (4) the level of certainty demonstrated by the witness at the confrontation; and (5) the length of **time** between the crime and the confrontation. *Id.* at 199-200.

c. In-Field Identification:

***12** Each of the *Biggers* factors weighs in favor of the reliability of the in-field show-up. First, Rodriguez was face to face with Petitioner at the **time** of the crime and was able to get a very good look at him. [3 RT 321-22, 323, 324, 327, 635-36.] Second, Rodriguez **paid** such close enough attention to the intruder that she was able to remember his threatening hand gestures. Crucially, Rodriguez never lost sight of the suspect's face throughout the entire incident. [3 RT 324-25, 329.] Third, Rodriguez's description of the perpetrator to police after the crime accurately described Petitioner's appearance and clothing. [3 RT 331-33, 606-08, 618, 623, 649-50, 660-61960, 965; Lodgment 22.] Fourth, Rodriguez identified Petitioner "immediately" upon viewing him during the show-up and there is no indication that she gave any hesitation. [3 RT 941.] Fifth, and finally, the infield show-up was conducted the day after the commission of the crime. [3 RT 931.]

d. Lineup Identification:

For the same reasons identified above, the first three *Biggers* factors weigh in favor of the reliability of the in-custody lineup identification. As to the fourth factor, Rodriguez was able to positively identify Petitioner during the lineup and gave no indication that she was uncertain about her identification. [1 CT 94.] With regard to the fifth factor, the in-custody lineup was conducted less than five months after the commission of the crime, sometime between the trial court's October 18, 2001 order for a lineup and January 14, 2002, when the prosecutor turned over a copy of the lineup report. [See Lodged Document 16 at H-3, 22.]

As Petitioner has failed to establish that the lineup procedures were unduly suggestive, he cannot show that they were the result of prosecutorial misconduct.

8. Adequate Notice of Burglary:

Finally, Petitioner claims that the prosecutor committed misconduct by failing to give fair notice of the prosecution's theory of burglary. Specifically, Petitioner complains of the prosecutor's decision to proceed on a theory that the burglary was committed with the intent to commit larceny, rather than with the intent to commit rape. Petitioner asserts that he was particularly prejudiced by the prosecutor's conduct because the prosecutor requested that the jury be instructed pursuant to [CALJIC No. 14.50](#) and then moved to amend that instruction to delete the language regarding entry with the intent to commit rape but leaving language regarding entry with the intent to commit larceny. [Petition at 150-53, 167-73.]

a. Background:

By Amended Information, Petitioner was charged with burglary by entering "with the intent to commit larceny and any felony." [1 CT 127.] Near the close of trial, the parties discussed the relevant jury instructions. At that **time**, the following colloquy took place between the prosecutor and the trial court:

[The Prosecutor]: That's fine. Then one additional thing, and that is, with regard to 14.50, which is the definition of burglary-

***13 ...**

[The Prosecutor]: I see. 14.50, the request that I am making is to withdraw the instruction to the extent that it's setting forth as an element that there could be either an intent to commit theft or felony. I am asking to withdraw the theory of entry with intent to commit rape. That in no way changes my position regarding count two. I am just asking to withdraw.

The Court: So you are going under the single theory, that it was with intent to steal or take away?

[The Prosecutor]: Correct.

The Court: [Defense counsel]?

[Defense Counsel]: I am not opposed it to [sic], your honor.

The Court: Okay.

[4 RT 1271-72.]

Ultimately, the jury was instructed pursuant to [CALJIC No. 14.50](#) as follows:

The **defendant** is accused in Count One of having committed the crime of burglary, a violation of [section 459 of the Penal Code](#). Every person who enters a building with the specific intent to steal, take and carry away the personal property of another, of any value, with the further specific intent to deprive the owner permanently of that property, a felony, is guilty of the crime of burglary in violation of [Penal Code section 459](#).

A building is a structure. It does not matter whether the intent with which the entry was made was thereafter carried out.

In order to prove this crime, each of the following elements must be proved: one, a person entered a building; and two, at the **time** of the entry that person had the specific intent to steal and take away someone else's property, and intended to deprive the owner permanently of that property.

[4 RT 1305; 2 CT 211.]

b. Legal Standard:

In *In re Oliver*, 333 U.S. 257, 68 S.Ct. 499, 92 L.Ed. 682 (1948), the Supreme Court held that the failure to afford a criminal **defendant** "a reasonable opportunity to **defend** himself" against a criminal charge constitutes a denial of federal due process, noting that "[a] person's right to reasonable notice of a charge, and an opportunity to be heard in his defense-a right to his day in court-are basic to our system of jurisprudence." *Id.* at 273; accord *Cole v. Arkansas*, 333 U.S. 196, 201, 68 S.Ct. 514, 92 L.Ed. 677 (1948). To determine whether a **defendant** has **received** fair notice, a court looks first to the information filed against him. *Calderon v. Prunty*, 59 F.3d 1005, 1009 (9th Cir.1995). Adequate notice also may be provided by other sources, such as the preliminary hearing, the jury voir dire, counsel's opening statements, the evidence presented, or the jury instructions requested. See *id.* at 1009-10.

c. Application:

Petitioner was notified from the earliest possible date of the prosecution's intent to proceed on a theory of burglary with the intent to commit larceny. Both the original Information

against Petitioner, filed April 17, 2002, and the Amended Information, filed February 13, 2003, charged Petitioner with burglary by entering "with the intent to commit larceny and any felony." [1 CT 124, 127.] Of course, this gave Petitioner explicit notice before trial of the prosecutor's theory that he committed the burglary with the intent to commit larceny. That the prosecutor ultimately decided not to proceed against Petitioner on an alternate theory that he entered with the intent to commit rape, does not lessen the notice Petitioner was afforded regarding the larceny theory.

C. CLAIM EIGHT-TRIAL COURT ERROR

***14** In his eighth claim, Petitioner asserts that the trial court erred in denying Petitioner his right to subpoena witnesses. [Petition at 120-28, 132-43.] Petitioner raised this claim in his habeas petition to the California Supreme Court. [Lodgment 12.] The California Supreme Court denied the petition summarily. [Lodgments 23, 28.] Accordingly, this court must independently review the record to determine whether federal habeas relief is warranted under the AEDPA standard. [Delgado, 223 F.3d at 981-82](#). As explained below, there is no basis for overturning the state court's rejection of Petitioner's claim of trial court error.

1. Background:

On February 27, 2002, Petitioner requested that the trial court issue subpoenas for multiple defense witnesses. [Lodgment 16 at H-24, H-41.] The trial court denied the request as follows:

The Court: We don't issue subpoenas.

...

The Court: I'm not going to issue subpoenas for police officers. I'm not going to issue subpoenas for district attorneys or public defenders.

[Petitioner]: this is everybody that is involved in my case, your honor. Everybody that is named that is printed on pieces of paperwork, I need them there for preliminary examination for cross-examination.

The Court: Then you go get your subpoenas.

[Petitioner]: I don't have no subpoenas. Right now there is no subpoenas at the jail.

You got a phone. You can call down there and ask. If they do, they just got them printed.

What am I going to do now? Have no witnesses at all?

The Court: No.

[Lodgment 16 at H-42, H-44.]

2. Legal Standard:

The Sixth Amendment provides, in pertinent part, that "[i]n all criminal proceedings, the accused shall enjoy the right ... to be confronted with the witnesses against him [and] to have compulsory process for obtaining witnesses in his favor...." [U.S. Const. amend. VI](#).

In discussing the Sixth Amendment, the Supreme Court has stated that "[f]ew rights are more fundamental than that of an accused to present witnesses in his own defense."

[Chambers v. Mississippi, 410 U.S. 284, 302, 93 S.Ct. 1038, 1049, 35 L.Ed.2d 297 \(1973\)](#).

"The right to offer the testimony of witnesses, and to compel their attendance, if necessary, is in plain terms the right to present a defense, the right to present the **defendant's** version of the facts as well as the prosecution's to the [factfinder] so it may decide where the truth lies.... This right is a fundamental element of due process of law." [Washington v. Texas, 388 U.S. 14, 19, 87 S.Ct. 1920, 18 L.Ed.2d 1019 \(1967\)](#); *see also* [Ponte v. Real, 471 U.S. 491, 510, 105 S.Ct. 2192, 2203, 85 L.Ed.2d 553 \(1985\)](#) (quoting [Washington v. Texas, 388 U.S. at 19](#)).

However, "[a] **defendant** does not have a constitutional right to **receive** personal instruction from the trial judge on courtroom procedure. Nor does the Constitution require judges to take over chose for a *pro se defendant* that would normally be attended to by

trained counsel as a matter of course." *McKaskle v. Wiggins*, 465 U.S. 168, 183-84, 104 S.Ct. 944, 79 L.Ed.2d 122 (1984). Ultimately, "[t]he right of self-representation is not ... a license not to comply with relevant rules of procedural and substantive law." *Faretta v. California*, 422 U.S. 806, 834 n. 46, 95 S.Ct. 2525, 45 L.Ed.2d 562 (1975).

3. Application:

***15** It is apparent from the trial court's ruling on Petitioner's motion for subpoenas that the trial court did not deny Petitioner the opportunity to call witnesses on his behalf, but that the court was unwilling to take on the administrative task of issuing the subpoenas for the witnesses. Had Petitioner been represented by counsel, counsel would have issued witness subpoenas as a matter of course. Accordingly, the trial court was under no obligation to assist Petitioner with this task. The trial court's ruling was all the more reasonable in light of the fact that Petitioner had been appointed an investigator who could have assisted Petitioner with issuing the subpoenas. That Petitioner opted against using his investigator was not the fault of the trial court. Moreover, it is apparent from the record that before the preliminary hearing Petitioner was able to complete a subpoena for transcripts and attempted to serve it upon the court reporter. [Lodgment 20 at 8.] Thus, Petitioner certainly could have issued subpoenas for his defense witnesses. Finally, by the **time** of the preliminary hearing, and at the **time** of trial, Petitioner was represented by defense counsel who would have sought the appearance of any necessary witnesses on Petitioner's behalf. [3 RT 1, 1 CT 3, 79.] In light of all the relevant circumstances, Petitioner cannot show that he was denied his right to compel witnesses in his defense.

D. CLAIMS ONE THROUGH TEN-INEFFECTIVE ASSISTANCE OF COUNSEL

Petitioner contends that his trial counsel rendered ineffective assistance for failing to adequately litigate the arguments raised in claims one through ten above. Specifically, Petitioner argues that counsel was ineffective for: (1) allowing the disclosure of the defense investigator's report and failing to object to such disclosure [Petition at 7, 15]; (2) failing to file motions to cure violations of his constitutional rights [Petition at 31, 61-67, 69-70]; (3) failing to impeach the prosecution's witnesses based on their perjured testimony [Petition at 31, 35-36, 61-70]; (4) failing to object to the prosecutor's leading questions [Petition at 31, 35-36, 61-70]; (5) failure to move for mistrial or question the jurors regarding the discovery of drugs in evidence [Petition at 71]; (6) failing to file an interlocutory appeal regarding the prosecutor's alleged suppression and destruction of evidence [Petition at 71]; (7) failure to move to suppress the eyewitness identification evidence, call an eyewitness identification expert, and request an instruction regarding eyewitness identifications [Petition at 71-72]; (8) failing to object to the violation of Petitioner's right to compulsory process [Petition at 120, 140-43]; (9) object to the trial court's limitation of cross-examination [Petition at 120, 131, 148-49]; and (10) failing to object to the modification of [CALJIC 14.50](#) [Petition at 150]. [Petition at 4a-5; Traverse at 9-13.] Petitioner raised this claim in his habeas petition to the California Supreme Court on November 15, 2004. [Lodgment 25.] Because the California Supreme Court summarily denied the petition, there is no reasoned decision articulating the basis for the state court's adjudication of this claim. [See Lodgment 28.] This court accordingly must independently review the record to determine whether federal habeas relief is warranted under the AEDPA standard. *Delgado*, 223 F.3d at 981-82. Here, the record does not afford any basis for overturning the state court's rejection of Petitioner's ineffective assistance of counsel claim.

1. Legal Standard:

***16** The Sixth Amendment guarantees criminal **defendants** the right to the effective assistance of counsel. *Strickland v. Washington*, 466 U.S. 668, 104 S.Ct. 2052, 80 L.Ed.2d 674 (1984). To establish a claim of ineffective assistance of counsel so as to warrant setting aside a criminal conviction or sentence, a habeas petitioner must show both that counsel's representation fell below an objective standard of reasonableness and that counsel's deficient performance prejudiced the defense. *Knowles v. Mirzayance*, --- U.S. ---, 129 S.Ct. 1411, 1419, 173 L.Ed.2d 251 (2009) (citing *Strickland*, 466 U.S. at 687). "Without proof of both deficient performance and prejudice to the defense ... it could not be said that the sentence or conviction 'resulted from a breakdown in the adversary process that rendered the result of the proceeding unreliable,' ... and the sentence or conviction should stand." *Bell v. Cone*, 535 U.S. 685, 695, 122 S.Ct. 1843, 152 L.Ed.2d 914 (2002)

(quoting *Strickland*, *id.*). Consequently, a claim of ineffective assistance must be rejected upon a finding either that counsel's performance was reasonable or that the alleged error was not prejudicial. *Strickland*, 466 U.S. at 697; *Rios v. Rocha*, 299 F.3d 796, 805 (9th Cir.2002) ("Failure to satisfy either prong of the *Strickland* test obviates the need to consider the other.").

A reviewing court must examine the reasonableness of counsel's challenged conduct under all the circumstances, including the facts of the particular case as viewed at the time of the conduct. *Strickland*, 466 U.S. at 688, 690. Scrutiny of counsel's performance must be "highly deferential," and a petitioner must overcome the presumption that, under the circumstances, the challenged action "might be considered sound trial strategy." *Id.* at 689. Counsel is "strongly presumed to have rendered adequate assistance and made all significant decisions in the exercise of reasonable professional judgment." *Strickland*, 466 U.S. at 690; see also *Bell*, 535 U.S. at 702 ("We cautioned in *Strickland* that a court must indulge a 'strong presumption' that counsel's conduct falls within the wide range of reasonable professional assistance because it is all too easy to conclude that a particular act or omission of counsel was unreasonable in the harsh light of hindsight.").

To prove prejudice, "[i]t is not enough for the [petitioner] to show that [counsel's] errors had some conceivable effect on the outcome of the proceeding" because "[v]irtually every act or omission of counsel would meet that test, and not every error that conceivably could have influenced the outcome undermines the reliability of the result of the proceeding." *Strickland*, 466 U.S. at 693 (citation omitted). Rather, a petitioner has the heavier burden of showing a "reasonable probability," sufficient to undermine confidence in the outcome, that, "but for counsel's unprofessional errors, the result of the proceeding would have been different." *Id.* at 694.

2. Application:

*17 Subclaims 1, 5, 6, 7, 8, 9, and 10 each fault defense counsel for failing to adequately litigate the errors alleged in claims 1, 2, 5, 6, 7, 8, 9, and 10 above. The Court has concluded above that there was no error with respect to these claims. An attorney's failure to make a meritless objection or motion does not constitute ineffective assistance of counsel. *Jones v. Smith*, 231 F.3d 1227, 1239 n. 8 (9th Cir.2000); *Boag v. Raines*, 769 F.2d 1341, 1344 (9th Cir.1985); see also *Ceja v. Stewart*, 97 F.3d 1246, 1253 (9th Cir.1996) (Trial counsel is not ineffective in failing to file a suppression motion "which would have been 'meritless on the facts and the law.' " (citation omitted)); *Rupe v. Wood*, 93 F.3d 1434, 1445 (9th Cir.1996) ("[T]he failure to take a futile action can never be deficient performance."). To the extent that Petitioner argues that counsel was ineffective for leaving the case file in the custody of the trial court, [Traverse at 37], which ultimately resulted in the prosecutor gaining access to the file and thereby the investigator's report, Petitioner cannot show prejudice. As explained, the prosecutor was entitled to discover the report and the chain of custody of the defense file was irrelevant to the reciprocal discovery obligations.

In subclaim 2, Petitioner faults defense counsel for not pursuing motions that had previously been filed by Petitioner in an attempt to cure alleged violations of his constitutional rights. However, the record reflects that counsel actively pursued rulings on these motions and, to the extent that they were considered by the trial court, they were denied. [3 RT 9-11; Lodgment 19.] Regardless, Petitioner has provided little detail with respect to the motions he feels should have been litigated and certainly has not shown that any of the motions would have been meritorious. Habeas relief is not warranted on such conclusory allegations and counsel cannot be faulted for failing to pursue motions that lack merit. See *Jones*, 231 F.3d at 1239 n. 8; *Ceja*, 97 F.3d at 1253; *Rupe*, 93 F.3d at 1445; *Jones v. Gomez*, 66 F.3d 199, 205 (9th Cir.1995) (Petitioner's "conclusory suggestions that his trial ... counsel provided ineffective assistance fall far short of stating a valid claim of constitutional violation."); *James v. Borg*, 24 F.3d 20, 26 (9th Cir.1994) ("Conclusory allegations which are not supported by a statement of specific facts do not warrant habeas relief."); *Boag*, 769 F.2d at 1344.

In subclaims 3 and 4, Petitioner complains of counsel's handling of the prosecution witnesses. First, Petitioner argues that counsel failed to impeach Rodriguez and Garcia

with respect to their allegedly perjured testimony, and failed to conduct an otherwise rigorous cross-examination of these witnesses.

As to Rodriguez, counsel thoroughly explored the inconsistencies in her testimony, highlighting discrepancies between her testimony, her preliminary hearing testimony, and her statements to police and the defense investigator. Counsel also questioned Rodriguez on her ability to see the perpetrator at the **time** of the offense and the accuracy of her later identification of Petitioner. [3 RT 628-29, 631, 635-42, 653, 654.] In fact, counsel's effective cross-examination of Rodriguez likely facilitated Petitioner's acquittal on the more serious charge of assault with intent to commit rape [see, e.g., 3 RT 634-35].⁷

***18** Counsel also thoroughly cross-examined Garcia. [3 RT 917-18, 919-20, 923-27.] Specifically, counsel questioned Garcia regarding whether or not he had delivered the letter to Detective Pennino, as the detective testified that he had not. [3 RT 924-26.] Counsel also impeached Garcia's testimony regarding delivery of the letter through the testimony of Detective Pennino. [3 RT 1007.] To the extent that Petitioner argues counsel should have called Deputy District Attorney Leslie Klein to testify that she had delivered the letter to Detective Pennino, the testimony would not have been necessarily impeaching of Garcia's testimony. Even had Ms. Klein testified that she delivered the letter to Detective Pennino, this would not have ruled out the possibility that Garcia also delivered a copy of the letter to Detective Pennino. Moreover, the testimony would not have advanced Petitioner's defense as he stipulated that he authored the letter [3 RT 666-67] and Detective Pennino testified that he **received** the letter from Ms. Klein and not Garcia [3 RT 994].

Petitioner's claim that counsel was ineffective for failing to request that the jury be instructed pursuant to [CALJIC 2.21.2](#) with respect to Garcia's testimony also fails. [CALJIC No. 2.21.2](#) states: "A witness, who is willfully false in one material part of his or her testimony, is to be distrusted in others. You may reject the whole testimony of a witness who willfully has testified falsely as to a material point, unless, from all the evidence, you believe the probability of truth favors his or her testimony in other particulars." First, Petitioner has not shown that Garcia was "willfully false" in any portion of his testimony. To the extent that Garcia's testimony regarding delivery of the letter differed from Detective Pennino, there is no evidence to show that this was anything other than faulty memory. Even if Garcia could be shown to have provided "willfully false" testimony in this regard, the testimony was not "material." How Detective Pennino **received** the letter was irrelevant to the issues at trial.

Finally, Petitioner's assertion that counsel was ineffective for failing to object to the prosecutor's leading questions does not warrant habeas relief. Petitioner offers nothing other than his own assertion that counsel failed to object to leading questions. He does not cite or otherwise identify any instances in which counsel failed to object. Such conclusory allegations are insufficient to prove ineffective assistance. See [Jones](#), 66 F.3d at 205; [James](#), 24 F.3d at 26.

E. CLAIM ELEVEN-SUFFICIENCY OF THE EVIDENCE

In his eleventh claim, Petitioner argues that there was insufficient evidence to support his convictions for burglary, bribery, and solicitation of bribery. [Petition at 150, 154-58, 174-89.] In the last reasoned state decision addressing this claim, the state appellate court held that there was sufficient evidence to sustain each of Petitioner's convictions. [Lodgment 9 at 3-10.] The California Supreme Court later summarily denied this claim in the petition for review. [Lodgment 11.] This court analyzes the state appellate court's decision for purposes of AEDPA review. See [Barker v. Fleming](#), 423 F.3d 1085, 1091-92 (9th Cir.2005); [Avila v. Galaza](#), 297 F.3d 911, 918 (9th Cir.2002).

1. Legal Standard:

***19** To review the sufficiency of evidence in a habeas corpus proceeding, the Court must determine whether " 'any rational trier of fact could have found the essential elements of the crime beyond a reasonable doubt.' " [Lewis v. Jeffers](#), 497 U.S. 764, 781, 110 S.Ct. 3092, 3102-03, 111 L.Ed.2d 606 (1990) (citation omitted); [Jackson v. Virginia](#), 443 U.S. 307, 319, 99 S.Ct. 2781, 2789, 61 L.Ed.2d 560 (1979). All evidence must be considered in the light most favorable to the prosecution, [Lewis](#), 497 U.S. at 782, 110 S.Ct. at 3103;

Jackson, 443 U.S. at 319, 99 S.Ct. at 2789, and if the facts support conflicting inferences, reviewing courts “must presume—even if it does not affirmatively appear in the record—that the trier of fact resolved any such conflicts in favor of the prosecution, and must defer to that resolution.” *Jackson*, 443 U.S. at 326, 99 S.Ct. at 2793; *Bruce v. Terhune*, 376 F.3d 950, 957 (9th Cir.2004) (per curiam); *Turner v. Calderon*, 281 F.3d 851, 881-82 (9th Cir.2002). Furthermore, under AEDPA, federal courts must “apply the standards of *Jackson* with an additional layer of deference.” *Juan H. v. Allen*, 408 F.3d 1262, 1274 (9th Cir.2005), cert. denied, 546 U.S. 1137 (2006). These standards are applied to the substantive elements of the criminal offenses under state law. *Jackson*, 443 U.S. at 324 n. 16, 99 S.Ct. at 2792 n. 16; *Chein v. Shumsky*, 373 F.3d 978, 983 (9th Cir.2004) (en banc).

a. Burglary:

“Burglary is defined [under California law] as entry into a building or certain structures and vehicles ‘with intent to commit grand or petit larceny or any felony.’” *People v. Rodriguez*, 122 Cal.App.4th 121, 131, 18 Cal.Rptr.3d 550 (2004) (quoting Cal.Penal Code § 459); see also *People v. Frye*, 18 Cal.4th 894, 954, 77 Cal.Rptr.2d 25, 959 P.2d 183 (1998), overruled on other grounds by *People v. Doolin*, 45 Cal.4th 390, 421 n. 22, 87 Cal.Rptr.3d 209, 198 P.3d 11 (2009) (“Any person who enters a house or building with the intent to commit a felony or theft is guilty of burglary.”). “While the existence of the specific intent charged at the time of entering a building is necessary to constitute burglary in order to sustain a conviction, this element is rarely susceptible of direct proof and must usually be inferred from all of the facts and circumstances disclosed by the evidence.” *People v. Holt*, 15 Cal.4th 619, 669, 63 Cal.Rptr.2d 782, 937 P.2d 213 (1997, as amended July 9, 1997) (internal quotation marks and citations omitted); accord *People v. Jordan*, 204 Cal.App.2d 782, 786, 22 Cal.Rptr. 731 (1962) (“As burglary is a crime of stealth, dependence must be placed in most cases upon circumstantial evidence .”).

Viewed in the requisite light most favorable to the prosecution, there was sufficient evidence by which a rational jury could find beyond a reasonable doubt that Petitioner committed burglary. At trial, the prosecutor presented evidence that Petitioner entered Rodriguez's apartment, confronted Rodriguez, searched through the drawers in the kitchen, and fled only after Rodriguez ran to her neighbor's door for assistance. [3 RT 329-30.] Here, the jury was entitled to infer that Petitioner had the specific intent to commit theft based on the fact that Petitioner entered the house unlawfully. See *People v. Holley*, 194 Cal.App.2d 538, 540, 15 Cal.Rptr. 44 (1961) (“The burglarious intent required by the statute in question may be inferred from the unlawful entry alone.”); accord *People v. Walters*, 249 Cal.App.2d 547, 551, 57 Cal.Rptr. 484 (1967). Moreover, the fact that Petitioner acted surprised and quickly exited the house when Rodriguez summoned the neighbors, (3 RT 330), provides sufficient evidence from which a juror could infer that Petitioner had the specific intent to commit theft. See *Jordan*, 204 Cal.App.2d at 786-87, 22 Cal.Rptr. 731 (“[C]ircumstances such as flight after being hailed by an occupant of the building ... will warrant the conclusion by a jury that the entry was made with the intention to commit theft.”).

b. Bribery of a Witness:

*20 California Penal Code section 137(a) provides that any person who “gives or offers, or promises to give, to any witness, person about to be called as a witness, or person about to give material information pertaining to a crime to a law enforcement official, any bribe, upon any understanding or agreement that the testimony of such witness or information given by such person shall be thereby influenced is guilty of a felony.” In the context of bribery, a defendant's intent can be inferred and “no express statement” is required. *People v. Cribas*, 231 Cal.App.3d 596, 609, 282 Cal.Rptr. 538 (1991).

The letter Petitioner sent to Rodriguez and Garcia, as detailed above, is sufficient proof of the crime of bribery. In the letter, Petitioner offered the witness \$500,000 in exchange for telling the “truth.” Petitioner's version of the “truth” was contrary to the statements Rodriguez and Garcia had given to police. Viewed in the light most favorable to the prosecution, this was evidence by which a rational jury could find beyond a reasonable doubt that Petitioner committed bribery.

c. Solicitation of Bribery:

"Every person who, with the intent that the crime be committed, solicits another to offer, accept, or join in the offer or acceptance of a bribe" is guilty of solicitation of bribery. [Cal.Penal Code § 653f](#)(a). "[A] **defendant** can ordinarily be convicted under a general solicitation statute only if, had the solicitation been successful, the person solicited would have been guilty of the underlying offense." [People v. Herman](#), 97 Cal.App.4th 1369, 1382, 119 Cal.Rptr.2d 199 (2002). [Penal Code section 138](#)(b) makes it a crime for any "person who is a witness, or is about to be called as such, [to] **receive**[], or offer[] to **receive**, any bribe, upon any understanding that his or her testimony shall be influenced thereby, or that he or she will absent himself or herself from the trial."

As explained above, Petitioner's letter was probative that he had offered to **pay** Rodriguez and Garcia if they gave testimony in his favor. Had Garcia accepted this bribe, he would have been guilty of a crime pursuant to [Penal Code section 138](#)(b). Viewed in the light most favorable to the prosecution, this was sufficient evidence by which a rational jury could find beyond a reasonable doubt that Petitioner committed solicitation of bribery.

Accordingly, the decision of the California Court of Appeal rejecting Petitioner's sufficiency of the evidence claim was neither contrary to nor an unreasonable application of clearly established Supreme Court law.

F. CLAIM TWELVE-RIGHT TO SELF-REPRESENTATION

In his twelfth claim, Petitioner asserts that the trial court denied him his right to represent himself by revoking his pro per status before his preliminary hearing. He further argues that the trial court again denied him his right to represent himself by denying his request to proceed pro per on the first day of trial. [Petition at 150, 158-66, 190-201.] Petitioner raised this claim in his habeas petition to the California Supreme Court. [Lodgment 12.] The California Supreme Court denied the petition summarily. [Lodgments 23, 28.] As there is no reasoned decision articulating the basis for the state court's adjudication of this claim, this court must independently review the record to determine whether federal habeas relief is warranted under the AEDPA standard. [Delgado](#), 223 F.3d at 981-82. Here again, the record does not afford any basis for overturning the state court's rejection of Petitioner's right to self-representation claim.

1. Legal Standard:

***21** Under the Sixth and Fourteenth Amendments, criminal **defendants** have a right to proceed without counsel and represent themselves at trial when they voluntarily and intelligently elect to do so. [Indiana v. Edwards](#), 554 U.S. 164, 128 S.Ct. 2379, 2382, 171 L.Ed.2d 345 (2008) (citing [Faretta v. California](#), 422 U.S. 806, 807, 95 S.Ct. 2525, 45 L.Ed.2d 562 (1975)); [McKaskle v. Wiggins](#), 465 U.S. 168, 173, 104 S.Ct. 944, 79 L.Ed.2d 122 (1984) (same); [United States v. Mendez-Sanchez](#), 563 F.3d 935, 945 (9th Cir.2009) (same); [Adams v. Carroll](#), 875 F.2d 1441, 1443 (9th Cir.1989) (same).⁸

2. Revocation of Pro Per Status:

On November 26, 2001, after some discussion, Petitioner proceeded with a request to represent himself pursuant to [Faretta v. California](#). After the trial court strongly cautioned him about the dangers of representing himself, the court granted Petitioner pro per status. [Lodged Document 16 at F-1-F-7.] In addition to the trial court's stern warning as to the perils of self-representation, the petition to proceed pro per completed and signed by Petitioner explained that he would be responsible for following the rules of criminal procedure and evidence and would not **receive** any help or special treatment from the judge, and that if he "d[id] not follow the court's orders or if [he] interfere[d] with the court's proceedings, the judge [could] end [his] right to represent [himself]." [Lodged Document 26.]

After being granted pro per status, Petitioner engaged in continuous harassing and dilatory conduct. He bogged down the court with repeated motions and discovery issues even before his preliminary hearing had been conducted. [Lodged Document 16 at H-20, H-22, H-24, H-41-H-42, H-44-H-45, H-68-H-69; Lodged Document 20 at 1, 7-8.] He argued with the trial court regarding the appointment, and later his disapproval, of a defense investigator. [Lodged Document 16 at H-2-H-3, H-12-H-13, H-18-H-19, H-49-H-50.] He argued about the adequacy of the prosecutor's discovery compliance despite the

prosecutor's herculean effort to assist Petitioner. [Lodged Document 16 at G-4-G7, H-4-H-5, H-15, H-20, H-25-H-41, H-51-H-52, H-60-69; Lodged Document 20 at 2, 5-6.] He lodged repeated, apparently unwarranted, accusations against the prosecutor. [Lodged Document 16 at H-12, H-52, H-53-H-54.] He admitted that he entered a "fraudulent plea" of not guilty by reason of insanity as a dilatory maneuver. [Lodged Document 16 at H-7-H-8, H-12, H-46.] He often spoke out of turn and was otherwise disrespectful to the court and other parties. [Lodged Document 16 at H-14, H-30, H-33, H-65, H-68, Lodged Document 20 at 8.] And, he sought repeated delays, both warranted and unwarranted. [Lodged Document 16 at F-7, G-2-G-3, H-8, H-16, H-24, H-51, H-57]

When Petitioner filed a complaint with the Commission on Judicial Performance that included unwarranted personal attacks on the prosecutor, the trial court warned Petitioner that "the kind of statements that you made are unfounded and unjustified, and they belie your ability to represent yourself here in court if they are made again. And if you demonstrate by your conduct that you are not able to or unwilling to represent yourself and conduct yourself in accordance with common decency, which is required of an officer of this court, then your pro per status will be terminated." [Lodged Document 16 at H-54.] The trial court then proceeded to appoint stand-by counsel to represent Petitioner in the event his pro per status was revoked. [Lodged Document 16 at H-54-H-55, H-57.]

***22** On March 6, 2002, Petitioner was held in the courthouse after his proceedings concluded so that the prosecutor could turn over additional discovery. [Lodged Document 20 at 7.] Although not transcribed, the circumstances surrounding the delivery of the discovery was apparently remarkable, as it prompted the trial court to revoke Petitioner's pro per status and reappoint counsel. [Lodged Document 17 at 5.] The next day the following colloquy occurred:

[Counsel]: [Petitioner] has indicated to me that he wishes to address the court.

I asked him if he was aware of what the proceedings were today, and he indicated-

The Court: Actually, at this point, [Petitioner] is here because of yesterday's penultimate outburst. I indicated to him that I was revoking his pro per privileges, and I want to put on the record some of the reasons why I am doing that.

Number one, it has become apparent that [Petitioner] has **refused** to utilize the investigator that I appointed for him, and he continues to waste court **time** arguing for an investigator of his choice.

He has filed repetitive and frivolous motions with regard to that and other issues.

He's engaged in boisterous and argumentative conduct in court.

He has made on file untrue accusations with regard to the district attorney on this case.

And bottom line is we are here to attempt to examine the sufficiency of evidence of an alleged crime that occurred in August of 2001 and for which [Petitioner] made his first court appearance on August 21st. As of today's date, we are, in my opinion, no closer based upon his stewardship of his own defense to examining on a preliminary bases that evidence than we were last August.

I am now revoking his pro per status and appointing Mr. Brewster as his attorney.

The **Defendant**: I object to anybody representing him. He had violated no court orders at all.

The Court: I rest my case.

The **Defendant**: Can I get a ruling on the objection?

The Court: Objection is noted and overruled.

The **Defendant**: All right. Well, thank you.

The Court: And so Mr. Brewster will, from this point forward, be the attorney of record on the case.

The **Defendant**: I object to anybody representing me.

The Court: Would you please remain silent or you will be removed from the courtroom, [Petitioner].

The **Defendant**: Let's go.

[Lodged Document 18 at 1-3.]

"[T]he government's interest in ensuring the integrity and efficiency of the trial at **times** outweighs the **defendant's** interest in acting as his own lawyer." *Martinez v. Court of Appeal*, 528 U.S. 152, 162, 120 S.Ct. 684, 145 L.Ed.2d 597 (2000). Ultimately, the right to self-representation cannot be "a license not to comply with relevant rules of procedural and substantive law," and a "trial judge may terminate self-representation by a **defendant** who deliberately engages in serious and obstructionist misconduct." *Faretta*, 422 U.S. at 834 n. 46; *McKaskle*, 465 U.S. at 168.

***23** This record clearly established that Petitioner deliberately engaged in "serious and obstructionist misconduct." *Faretta*, 422 U.S. at 834 n. 46; *McKaskle*, 465 U.S. at 168. Petitioner exhibited a conscious disregard for courtroom procedures and decorum, and wholly disrespected the integrity and efficiency of the court. Under these circumstances, the trial court appropriately revoked Petitioner's pro per status.

3. Denial of *Faretta* Motion:

Petitioner's case was set for trial on April 28, 2003. That day, he requested that he be allowed to proceed pro per. [1 RT 2.] The trial judge advised Petitioner that he would not **receive** a continuance if his request was granted. Petitioner insisted that he would need a continuance and would not be prepared to proceed to trial that day. On this basis, the trial court denied Petitioner's request. [1 RT 2-3.]

The assertion of the right to self-representation must be **timely** and must not be for the purpose of delay. *Sandoval v. Calderon*, 241 F.3d 765, 774 (9th Cir.2000). In *Faretta*, the Supreme Court clearly established that a *Faretta* request made "weeks before trial" is **timely**. See *Marshall v. Taylor*, 395 F.3d 1058, 1061 & 1061 n. 14 (9th Cir.2005) (citation omitted). However, the Supreme Court has not otherwise clearly established when a *Faretta* request is untimely. *Marshall*, 395 F.3d at 1061. Accordingly, other courts are free to assess when a motion is untimely so as long as their standards comport with the Supreme Court's holding that a request 'weeks before trial' is **timely**. *Marshall*, 395 F.3d at 1060-61 (decision that motion for self-representation made on the morning of trial was untimely not objectively unreasonable); see also *Stenson v. Lambert*, 504 F.3d 873, 882, 884 (9th Cir.2007) (decision that motion for self-representation made during voir dire and "on the verge of jury impanelment" was untimely was not objectively unreasonable; "Supreme Court has never held that *Faretta's* 'weeks before trial' standard requires courts to grant requests for self-representation coming on the eve of trial."), cert. denied, --- U.S. ---, 129 S.Ct. 247, 172 L.Ed.2d 188 (2008).

Petitioner's *Faretta* motion made on the morning of trial was clearly untimely under this authority. Thus, the trial court did not err in denying the request.

Accordingly, habeas relief is not warranted on this claim.

VI. RECOMMENDATION

For the reasons discussed above, it is recommended that the court issue an order: (1) approving and accepting this Report and Recommendation; and (2) denying the petition and dismissing this action with prejudice.

All Citations

Not Reported in F.Supp.2d, 2010 WL 1678176

Footnotes

- 1 The California Supreme Court later held in *People v. Black*, 35 Cal.4th 1238, 29 Cal.Rptr.3d 740, 113 P.3d 534 (2005), that *Blakely* did not apply to California determinate sentencing. That decision was subsequently abrogated by the Supreme court's decision in *Cunningham v. California*, 549 U.S. 270, 127 S.Ct. 856, 166 L.Ed.2d 856 (2007). See *Black v. California*, 549 U.S. 1190, 127 S.Ct. 1210, 167 L.Ed.2d 36 (2007) (granting certiorari, vacating California Supreme Court decision, and remanding for further consideration in light of *Cunningham*). Petitioner has not raised any claim of error under *Cunningham*.
- 2 When a claim was rejected by the state court on procedural rather than substantive grounds, de novo review is required. See *Lewis v. Mayle*, 391 F.3d 989, 996 (9th Cir.1994); *Pirtle v. Morgan*, 313 F.3d 1160, 1167 (9th Cir.2002).
- 3 In claim one, Petitioner asserts a violation of his equal protection rights as a result of the alleged judicial misconduct. However, he has not presented any facts or arguments that would give rise to an equal protection claim. Accordingly, the Court does not address this aspect of Petitioner's arguments.
- 4 In its opinion on direct appeal, the Court of Appeal described petitioner's letter as follows:

Defendant wrote two letters from jail, one to Rodriguez and the second to Garcia. The Garcia letter was the basis for the bribery and solicitation of bribery convictions. Without benefit of corrections (grammatical, punctuation, spelling or otherwise) or "sics," we set forth in total the letter sent to Garcia ("De la Cruz" refers to Garcia and "Leticia" refers to Rodriguez):

To: Louis Garcia Delacruz

From: Jerry Sylve AKA Marcel Haynes

How would you like to become 500,000 00 Five hundred Thousand Dollars richer. All you have to do is be a man and tell the truth. I wrote you at your job because I figure that the District Attorney crooked ass done moved you or aggravated you to make you move. Yeah, I know much about you. I even know that Leticia is an illegal Mexican in United States. I could have been sent them people over there but its not my style, plus we both can use each other. All I need you to do is come to court on April 2, 2002 415 W. Ocean Blvd. Long Beach and tell the truth. The police lied on you and said that you interpreted what I've sent a copy with this letter all you have to do is be a man and tell the truth. We all going to get **paid** on a big lawsuit. Its only one lie that you and Leticia told, but I understand when a person is mad. I sent you a copy of exactly what they say you told the police that night that bullshit happened. So the court date is April 2, 2002 at 415 W. Ocean Blvd. Long Beach CA Division 6 that's very important

I'm not saying lie. Just tell the truth on record when you see the police report just say you didn't say it, or if you did just say you did. Just speak the truth. Do not tell the District Attorney or police about this letter because they are trying their best to not have you in court, but if you do come and just tell the truth, my word is my bond, you and your family will be able to move out of the ghetto once we win the lawsuit. Also I sent another copy to show that the police is lying on yall to send me to prison. Now look at the report and ask Leticia did that happen, what the police

saying happened. They probably done told yall all type of lies to turn yall against me or make yall believe I done that bullshit. Just pop up at 415 W. Ocean Blvd. Long Beach Div. 06 at 8:00 AM and wait patiently it might take to 2:00 but its worth the weight, I swear we are going to get **paid** if you just tell the truth. We need each other.

My real name is Jerry Sylve but I'm in jail under Marcel Haynes 6986210

Garcia

This is what the police said you told them. be a man and lets both profit off of their lies.

We contacted victim Leticia Rodriguez. Rodriguez is a Spanish speaker and speaks very little English. Her husband De le Cruz translated while Officer Smith and I interviewed Rodriguez.

Rodriguez said before going to sleep, she remembers the doors and windows were closed. However, she did not remember if they were locked or not. She said she gave nobody permission to enter her home. She said she was sleeping on the bedroom floor with her 3 children. She said it was approximately 5:05 when she heard what sounded like her living room sliding window being opened. Then she heard the plastic vertical blinds. Rodriguez said she got up from the floor to see what caused the noise in the livingroom. Before she could get to her bedroom door, she saw the suspect standing there. She said she could clearly see the suspects face because of the light was on in the kitchen and they were within arms reach of each other. At first she thought the suspect might have been a previous tenant because they had just moved into that apartment the night before. Rodriguez said the suspect told her to go back to sleep and to lay down. She told the suspect to leave. The suspect again told her to lay down. She then raised her voice and shouted 'Leave.' The suspect reached into his back area with his right hand, placing something in his hand and then held it to her chest area. She said she was unable to describe the object, While he was holding the object in front of her chest, he told her 'Lay down.' She said she was afraid and thought she was going to be raped, so she sat down on the floor with her legs straight out. The suspect squatted down over her shins, placed the weapon somewhere into his rear area, and then placed both his hands on her bare thighs. The suspect told her to be quiet and not to move. She said at the **time**, she was only wearing a T-shirt and panties. She said the suspect put his face on her legs and started to rub his hands up and down on her thighs. She said she screamed and pushed him away with her hands. She said she used her left hand to push his face away and she pushed him on his right shoulder with her right hand. She said she pushed him away about 3 **times** until the suspect fled the room and exit the apartment through the front door in the living room. She said she did not follow the suspect and did not see which direction he left after leaving the apartment. She said she immediately went to Apt. ? 4 and asked to use the phone. She said she called her husband on his cell phone and told him what happened. Her husband came home and he called the police for assistance.

Rodriguez said she can positively identify the suspect if seen again. I gave he a report reciept. A lab unit was requested for possible fingerprints.

You know how I know you didn't say that, because I got a copy of the report that Leticia called and told the investigator two months later and its totally different. Now I know the District Attorney and police done told yall all type of lies about me. Thats to turn yall against me to send a

innocent man to jail. There is a woman in that apartment complex who stay in the second apartment from the street. Her husband drive a taxi if they still stay there. There is a women who stay next to the apt. complex in a blue or kind of gray house with dogs in the fence. I was around there 3 wks. Don't it seem funny that I never tried anything stupid with them, but soon as yall moved in I'm supposed to become a rapist. Man my crime used to be drugs. I don't even have to do that anymore because these people is going to **pay** me soon. You could be a part of that **pay**. Last **time** Leticia gave my letter to the detective. Its not a good move to be doing that, Its best that this is kept from them and you just pop up and be my witness. The police is trying to keep you out of the court room but convict me on saying that you said all them lies. Really, I'm not tripping on you showing this letter but its only hurting you, because you need to weigh your options. You and Leticia can try to send a innocent man to jail but yall will get nothing out it and might risk Leticia getting moved back to Mexico because she is over here illegal. Its not like you could move because the police will follow you from your job to see where you stay then make Leticia come to court or you could come to court on the 2nd of April and stay there all day until you testify for me, by doing that you will get five hundred thousand of the 2 mill. dollar lawsuit I filed. Be at this address April 2, 2002 to be a man. Just tell the truth.

Sit in the back of the courtroom. I'll be bobbing my head up and down. Amingo we could get **paid** just don't fall for the District Attorney and police tricks. I hope Leticia don't either. Talk to her man.

415 W. Ocean Blvd.

Long Beach, CA.

Division 6 Courtroom

Be there April 2, 2002

Stay there all day until you hear Jerry Sylve my last name is like silver but don't have the er

The following was written on a copy of a follow-up police report and was included in the above letter:

Ask your woman I bet she didn't say this. I know she called and gave a statement on Oct. 31 2001. Halloween to Richard Arellano. He left a card on yall door to call, and thats what happened.

[Lodgment 9 at 4-9.]

- 5 Petitioner does not cite, either in his Petition or his Traverse, what portions of the prosecutor's argument allegedly amounted to misconduct. As such conclusory allegations are not sufficient to warrant habeas relief, [James v. Borg](#), 24 F.3d 20, 26 (9th Cir.1994), this portion of Petitioner's argument is not addressed below.
- 6 In claims two, three, five, six, and seven, Petitioner asserts equal protection violations as a result of the alleged prosecutorial misconduct. However, as with claim one, he has not presented any facts or arguments that would give rise to an equal protection claim. Accordingly, the Court does not address these aspects of Petitioner's arguments.
- 7 Although assault with intent to commit rape under [Penal Code section 220](#) and first degree burglary under [Penal Code sections 459-461](#), are both independently punishable by imprisonment for two, four, or six years, a conviction of assault with intent to commit rape in conjunction with a

conviction of first degree burglary carries a punishment of life in prison with the possibility of parole. [Cal.Penal Code §§ 220, 459-461](#).

8

Denial of this right “is not amenable to ‘harmless error’ analysis. The right is either respected or denied; its deprivation cannot be harmless.” [McKaskle](#), 465 U.S. at 177 n. 8; *see also* [United States v. Hernandez](#), 203 F.3d 614, 626 (9th Cir.2000).

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